AGREEMENT FOR
JANITORIAL SERVICES FOR
GLENEAGLES FACILITIES

BETWEEN

NORTH TEXAS TOLLWAY AUTHORITY

AND

[INSERT CONTRACTOR NAME]

Contract No. 06283-GEC-00-GS-MA

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AGREEMENT FOR JANITORIAL SERVICES FOR GLENEAGLES FACILITIES

Contract No. 06283-GEC-00-GS-MA

THIS AGREEMENT (together with all attachments hereto, the "Agreement") by and between the NORTH TEXAS TOLLWAY AUTHORITY, ("NTTA"), a regional tollway authority and political subdivision of the State of Texas and [insert Contractor's legal name here], a [insert state of formation and type of legal entity] ("Contractor"), is entered into as of the Effective Date, as defined on the signature page of this Agreement. NTTA and Contractor may be referred to herein each, individually, as a "Party" and together, collectively, as the "Parties."

RECITALS

WHEREAS, NTTA is a regional tollway authority and a political subdivision of the State of Texas authorized and existing pursuant to the Texas Regional Tollway Authority Act (the "Act"), codified in part as Chapter 366 of the Texas Transportation Code; and

WHEREAS, NTTA exercises the powers conferred by the Act in the acquisition, design, financing, construction, operation, and maintenance of turnpike projects and systems; and

WHEREAS, NTTA is authorized by the Act to enter into agreements necessary or incidental to its duties and powers, including agreements for the procurement of goods and/or services; and

WHEREAS, NTTA desires to retain Contractor to provide the goods and/or services (collectively, the "Deliverables") described herein.

NOW, THEREFORE, in consideration of payments hereinafter stipulated and the mutual promises herein, the receipt and sufficiency of which the Parties acknowledge, the Parties agree as follows:

1. SCOPE OF WORK

The Deliverables are described in Exhibit A ("Scope of Work"). Contractor represents that it is fully equipped, competent, and capable of providing the Deliverables as required under this Agreement. Contractor will diligently provide all of the Deliverables in compliance with the schedule, if any, established in Exhibit A or as otherwise agreed to by the Parties in writing. Without limiting the generality of the foregoing, Contractor will provide all personnel, materials, facilities, and any other required resources, unless specifically exempted herein, to fully provide the Deliverables within the time specified, for the compensation stated, and otherwise in accordance with the terms and conditions of this Agreement. All Deliverables will be of high quality, will be complete in all respects, will comply fully with the terms of this Agreement, and will include all typical and reasonable services required in connection with providing such Deliverables, whether or not expressly described in Exhibit A. In providing any Deliverables, Contractor shall operate in coordination with NTTA's staff. All work performed in supplying the Deliverables will be subject to the approval of NTTA and will be performed consistent with the highest prevailing professional or industry standards applicable to the Deliverables that are allowed by law.

2. COMPENSATION

(a) Contractor agrees to accept the consideration described in Exhibit B as full and sufficient compensation for the satisfactory performance of its obligations under this Agreement. Payments by NTTA will be inclusive of all federal, state, and local taxes and will constitute full

payment for the Deliverables and all resources required to deliver the Deliverables, including materials, training, equipment, travel, overhead, fees, and expenses. If NTTA materially changes features, scope, or amounts of the Deliverables from those shown and described in the Scope of Work, then the fees to be paid to Contractor will be subject to adjustment upward or downward as specified by mutual written agreement signed by NTTA and Contractor prior to such change.

(b) No payment by NTTA will relieve Contractor of its obligation to deliver the Deliverables in accordance with the terms of this Agreement, including without limitation all schedules for delivery contained herein. If after paying for the Deliverables, NTTA determines that any Deliverables do not satisfy the requirements of this Agreement, NTTA may reject them and Contractor will return the compensation received for such Deliverables within 30 days of such rejection. In addition to all other available rights and remedies, NTTA may set off amounts owed by Contractor to NTTA against amounts owed by NTTA to Contractor.

(c) Contractor will provide fully-documented and accurate itemized invoices within 30 days of the end of the month for which work under this Agreement is being billed, with appropriate and applicable attachments. Each statement for goods and/or services must, at a minimum, include a description and quantity of any goods delivered, a description of any services performed, the day(s) that Contractor delivered such goods and/or performed such services, the time each person spent that day in performing the services, and the total amount billed for the goods and/or services, as applicable, included in the invoice. Upon request, Contractor will also submit certified time and expense records and copies of documentation acceptable to NTTA that support invoiced salary and expense figures. NTTA will review and timely approve (or raise disputes or inquiries concerning) each submitted invoice and compensate Contractor for all compliant and undisputed amounts within 30 days of its receipt of the invoice. NTTA will have the right to withhold payments for, and/or set off payments against, ineligible expenditures, use or sales taxes assessed for which NTTA is exempt, undocumented units of service billed, and any profit made by Contractor not provided for in this Agreement.

(i) With respect to Deliverables that are to be compensated based on time spent by an individual in rendering services comprising or associated with the Deliverables, time spent by a principal of Contractor performing services or functions capable of being carried out by other, subordinate personnel with a lower standard hourly rate will be billed at a rate equivalent to that of the applicable qualified, subordinate personnel.

(ii) Time spent by a principal of Contractor in an administrative or supervisory capacity will not be compensable.

(iii) Compensation, if any, set forth in Exhibit B will not be adjusted during the Term of this Agreement except as provided in this Subsection. Contractor may propose adjustments to hourly rates or other compensation or the addition of any new positions or classes of personnel annually by requesting such changes in writing at least 30 days in advance of the anniversary of the Effective Date. NTTA will approve, reject, or modify such request in writing within a reasonable time. Unless approved in writing by NTTA, no adjustment in hourly rates, other compensation, and/or any additional positions/classes of personnel will be made and/or charged to NTTA.

(iv) Travel expenses are reimbursable only to the extent expressly approved by NTTA in writing; approved travel and requests for travel reimbursements must comply

and be submitted in conformance with NTTA's Travel Authorization and Expense Reimbursement Procedure.

(d) Notwithstanding anything to the contrary contained or implied in this Agreement, all compensation billed to and payable by NTTA will be subject to the rate discounts and other benefits consistent with the most substantial discounts and benefits Contractor provides to comparable clients for services similar to those provided under this Agreement. Contractor will make available to NTTA for review, copying, and auditing throughout the Term and for three years after the expiration thereof all such books and records as may be necessary for NTTA or its representatives to determine compliance with this provision.

(e) Contractor acknowledges and agrees that it is providing the Deliverables on a nonexclusive basis and that NTTA, at its option, may elect to have any of the Deliverables performed by other contractors or by NTTA's staff.

3. INSURANCE; BOND REQUIREMENTS

(a) Before beginning its performance under this Agreement, Contractor will, at Contractor's own expense, comply with the terms of Exhibit C, including obtaining insurance coverage on the terms and in the amounts specified therein.

(b) If during the Term there is an adverse change in Contractor's financial condition or if NTTA reasonably determines that additional insurance coverage or coverage amounts are prudent in light of the risks associated with Contractor or its delivery of the Deliverables, Contractor will procure such additional insurance coverage as NTTA reasonably requires and is commercially available.

(c) Before beginning its performance under this Agreement, Contractor will, at Contractor's own expense, obtain any bond(s) required by NTTA or by statute in the form(s) attached as Exhibit F, unless otherwise approved by NTTA.

4. TERM; TERMINATION

(a) The term of this Agreement ("Term") will start on the Effective Date and, subject to earlier termination in accordance with this Agreement, will remain in effect for 4 years. Termination of this Agreement shall not relieve a Party from any obligations that expressly survive termination.

(b) Contractor will begin work under this Agreement at the commencement of the Term. Any work undertaken or expenses incurred by Contractor before the commencement of the Term shall be at the sole risk and expense of Contractor. Contractor shall promptly begin work to provide the Deliverables in accordance with this Agreement and shall continue with all diligence required to comply with this Agreement, including, without limitation, any schedule or schedules pertaining to all or any portion of the Deliverables.

(c) Notwithstanding any dispute that may arise between Contractor and NTTA related to this Agreement or otherwise, Contractor will at all times perform its obligations under this Agreement diligently and without delay in accordance with the requirements of this Agreement.

(d) In addition to any other remedy set forth in this Agreement or otherwise available at law or in equity, NTTA may terminate this Agreement by written notice to Contractor at any

time, without prejudice to any other legal rights to which NTTA may be entitled, upon the occurrence of any one or more of the following (each, a "Default"):

(i) NTTA determines, in its sole judgment, that Contractor's performance under this Agreement is unsatisfactory; or

(ii) Contractor defaults in the performance of any of the provisions of this Agreement; or

(iii) any representations or warranties made by Contractor to NTTA prove to be untrue or inaccurate in any material respect; or

(iv) Contractor files, or a third party files against Contractor, a petition in bankruptcy;

(v) NTTA determines, in its sole judgment, that termination is in NTTA's best interest.

(e) If a Default occurs under any of (d)(i) – (iv) above, NTTA will have the right to set off or otherwise recover any damages incurred by reason of Contractor's Default, including, without limitation, any costs or expenses incurred by NTTA to engage another party to provide the Deliverables as required by this Agreement. NTTA's right to terminate this Agreement will be in addition to, and not in lieu of, any and all rights, actions, options, and privileges otherwise available to NTTA as a consequence of said Default, whether arising at law or in equity, pursuant to this Agreement, or otherwise. Following a Default by Contractor, NTTA may withhold payment of any sums that Contractor claims are owed by NTTA pending determination of the amount of any setoff or damages available to or damages suffered by NTTA due to Contractor's failure to satisfactorily perform under this Agreement, and Contractor will not alter, cease, or slow down its performance under this Agreement on account of NTTA's withholding payment of any such disputed amount.

(f) If NTTA terminates this Agreement pursuant to a Default under Section 4(d)(v) above, NTTA will compensate Contractor for all Deliverables provided and expenses reimbursable in accordance with this Agreement through the date of that termination; provided, however, that no consideration will be given to profit which Contractor might have anticipated receiving on the uncompleted portion of the Deliverables.

(g) Termination of this Agreement for any reason will not relieve either Party from its obligation to perform up to the date of termination or to perform all obligations that survive termination. Contractor will not be entitled to any compensation for any work or services performed or provided after the termination date. If before the termination of this Agreement, NTTA makes payments attributable to periods after termination, Contractor will refund those payments to NTTA within 30 days of the termination date. Contractor will not be entitled to any compensation for any work performed or provided after the termination date. Nothing in this Subsection will limit the rights otherwise available to a Party arising from the breach of this Agreement.

5. INSPECTION OF BOOKS AND RECORDS

NTTA, its employees or agents, or any duly authorized representative of NTTA will have the right to inspect and examine the books and records (collectively, "Records") of Contractor, in whatever

form said Records may be kept, at Contractor's office for all lawful purposes, including but not limited to the following:

(a) examination;

(b) audit;

(c) investigation;

(d) contract administration;

(e) checking the salary costs and other expenses described and/or contemplated in this Agreement; or

(f) otherwise confirming compliance with the terms of this Agreement.

Records, for the purposes of this Section, include any and all authorization logs, transaction records, books, documents, and papers that are directly pertinent to the provision of the Deliverables. Contractor will maintain such Records, together with supporting or underlying documents and materials, for the duration of this Agreement and according to NTTA's Records Retention Schedule after the completion of this Agreement, including any and all renewals or extensions thereof. The Records, together with the supporting or underlying documents and materials, will be made available upon request to NTTA, through its employees, agents, representatives, contractors, or other designees, during normal business hours. Contractor will provide such access in reasonable comfort and will provide any furnishings, equipment, or other conveniences deemed reasonably necessary to fulfill the purposes described in this Section.

6. NOTICES

All notices (each, a "Notice") required to be given hereunder must be in writing and must be sent by hand delivery; certified mail, return receipt requested; or reputable overnight air courier, addressed as follows:

(a) **If to NTTA by hand delivery or air courier:**

North Texas Tollway Authority
Attention: Senior Director of Procurement
5900 W. Plano Parkway, Suite 100
Plano, Texas 75093

Copy to: General Counsel
5900 W. Plano Parkway, Suite 100
Plano, Texas 75093

(b) **If to Contractor**:

_____
Attention: _____
_____
_____

If to NTTA by United States mail:

North Texas Tollway Authority
Attn: Senior Director of Procurement
P.O. Box 260729
Plano, Texas 75026

Copy to: General Counsel
P.O. Box 260729
Plano, Texas 75026

or to such other address as a Party may provide to the other in writing delivered as stated above. Notices transmitted in such manner will be deemed delivered upon the earliest of: (a) delivery at the applicable address, as indicated on a signed receipt (or if the recipient refuses to accept the Notice or the Notice cannot be delivered because of a change of address for which no proper Notice was given, at the time of the attempted delivery, as indicated in the records of the service that attempted to deliver the Notice), (b) three business days after the Notice was placed for delivery with the United States mail, or (c) one business day after the Notice was placed for same-day or overnight delivery with a reputable overnight air courier service, as applicable, with all fees paid and addressed as provided above.

7. COMPLIANCE WITH LAWS

Contractor warrants and covenants that it, its agents and subcontractors, and the employees of each of them will strictly comply with all laws, rules, regulations, orders, and decrees applicable to its performance of this Agreement, including, without limitation, workers' compensation laws, anti-discrimination laws, environmental laws, minimum and maximum salary and wage statutes and regulations, prompt payment laws, overtime laws, health and safety statutes and codes, licensing laws and regulations, the Regional Tollway Authority Act, antitrust laws, and all amendments and modifications to any of the foregoing, if any. Contractor warrants and covenants that it has in place a policy that prohibits its employees from carrying weapons in its workplace. During the Term, Contractor will maintain this policy and make any amendments necessary to its policy to clarify that for purposes of the Contractor's policy, the "workplace" is defined to include any NTTA facility where Contractor's employees provide services. Contractor warrants and covenants that whenever Contractor's employees, agents, or subcontractors or the employees of Contractor's agents or subcontractors are at an NTTA facility or worksite, all such agents, subcontractors, and employees will comply with the same rules, regulations, and standards of conduct that are applicable to NTTA employees at such NTTA facility or worksite. Contractor warrants and covenants that it has obtained and will maintain all required permits, licenses, registrations, and filings in connection with its performance of this Agreement. Upon NTTA's request, Contractor will timely furnish NTTA's general counsel with satisfactory proof of its compliance with these warranties and covenants.

8. REPRESENTATIONS, WARRANTIES, AND COVENANTS

(a) Contractor represents and warrants that it is duly formed and qualified to do business under the laws of the State of Texas and that the individual or individuals executing this Agreement on its behalf are fully authorized to do so without the necessity of any additional action by its board of directors, officers, partners, owners, shareholders, members, or any other party. Contractor further represents and warrants that each signatory is a fully authorized officer,

partner, or representative, as applicable, of Contractor and has full and complete authority to execute this Agreement on behalf of Contractor. NTTA is relying upon the assurances provided in this Section when entering into this Agreement.

(b) Contractor represents, warrants, and covenants to NTTA that (i) it has the full right, power, capacity, and legal authority to enter into and fully perform all obligations required of Contractor under this Agreement, (ii) the execution, delivery, and performance of this Agreement has been duly authorized by Contractor and does not and will not violate or cause a breach of any other agreement or obligation to which it is a party or by which it is bound, and (iii) no approval or other action by any third party is required in connection herewith.

(b) Contractor represents, warrants, and covenants that (i) it does not, and will not during the Term, boycott Israel in violation of Texas Government Code, Chapter 2271, (ii) it is not identified on any list of scrutinized companies or companies known to have interactions with a foreign terrorist organization as described in Texas Government Code, Chapter 2252, Subchapter F, (iii) it does not, and will not during the Term, have a practice, policy, guidance, or directive that discriminates against a firearm entity or firearm trade association in violation of Texas Government Code, Chapter 2274, (iv) it does not, and will not during the Term, boycott energy companies in violation of Texas Government Code, Chapter 2274, and (vi) it is not: (A) owned by, nor is the majority of the its stock or other ownership interests held or controlled by: (1) individuals who are citizens of a "Prohibited Country" as defined below, or (ii) a company or other entity, including a governmental entity, that is owned or controlled by citizens of or directly controlled by the government of a Prohibited Country or (B) headquartered in a Prohibited Country. A "Prohibited Country" is defined as China, Iran, North Korea, Russia or any country that the governor, under Texas Government Code, Section 2274.0103, designates to be a threat to critical infrastructure.

(c) Contractor warrants that the Deliverables will be provided consistent with the highest prevailing professional or industry standards applicable to the Deliverables that are allowed by law. NTTA agrees to report in writing any deficiencies in the Deliverables to Contractor within 60 days of NTTA's acceptance of any portion of the Deliverables, as provided under this Agreement. NTTA will be entitled to the expeditious cure of any deficiencies in a manner least disruptive to the operation of NTTA's business. If Contractor is unable to cure deficiencies in the Deliverables, NTTA will be entitled to recover the fees paid to Contractor and to recover any additional costs incurred by NTTA specific to curing deficiencies in the Deliverables. Nothing contained in this Section, nor any warranty claim asserted by NTTA under this Section, will be deemed to constitute an election of remedies by NTTA for a breach by Contractor under this Agreement; nor will making a claim under this Section limit or otherwise impair NTTA's ability to pursue any and all remedies available under this Agreement or under applicable law for Contractor's breach of this Agreement.

(d) Upon NTTA's request, Contractor will timely furnish NTTA's general counsel with satisfactory proof of its compliance with these warranties, covenants, and representations.

9. NON-DISCRIMINATION; DIVERSITY POLICY

NTTA is an equal opportunity employer. In conducting business with or on behalf of NTTA, Contractor will not discriminate against any person because of race, age, color, religion, sex, sexual orientation, gender identity, disability, ancestry, national origin, place of birth, or veteran status. Contractor further acknowledges NTTA's commitment to facilitate and assure the participation of disadvantaged, minority-, and women-owned business enterprises ("D/M/WBEs")

and agrees that it will use its best good faith efforts to assist NTTA in its fulfillment of such commitment. To ensure that disadvantaged, minority- and women-owned have the maximum practicable opportunity to participate in the awarding of NTTA contracts and related subcontracts, NTTA's Board of Directors has adopted a Disadvantaged, Minority, Women-Owned, and Small Business Enterprises (Diversity) Policy, which is incorporated by reference into this Agreement for all purposes. Contractor will submit to NTTA a fully executed Subcontractor Plan Form for all subcontractors, which is attached to this Agreement as Exhibit D and incorporated into and made part of this Agreement for all purposes. In connection with any subletting, subcontracting, assignment, or transfer of its work or obligations hereunder, Contractor will serve in a role typically described as the prime contractor with respect to all Deliverables provided pursuant to this Agreement and will be responsible for ensuring the delivery all of the Deliverables of whatever kind provided pursuant to this Agreement and in compliance with the terms of this Agreement. Contractor will submit a monthly report of all subcontracting activities via NTTA.diversitycompliance.com. Contractor's failure to make a good faith effort or to submit its reports in a timely manner may result in termination of this Agreement.

10. OWNERSHIP OF INFORMATION

(a) Notwithstanding any provision in this Agreement or in common law or statute to the contrary, all of the Deliverables, estimates, technical specifications, documents, designs, graphical representations, plans, useful techniques, drawings or renderings, sketches, reports, computer records, computer software and source code associated therewith, processes, data, discs, tapes, proposals, diagrams, charts, calculations, correspondence, memoranda, narratives, discoveries, inventions, trademarks, service marks, original works of authorship, and any portion thereof, created, compiled, or to be compiled by or on behalf of Contractor in providing the Deliverables, together with all materials and data furnished to Contractor by NTTA or that are created, directly or indirectly, in connection with Contractor's work in providing the Deliverables ("Work Product"), will at all times be and remain the property of NTTA and will not be subject to any restriction or limitation on their further use by or on behalf of NTTA; and, if at any time demand be made by NTTA for any of the above materials, records, and documents, whether after expiration or termination of this Agreement or otherwise, such will be turned over to NTTA without delay. Contractor, at its sole cost and expense, will have the right to retain a copy of the above materials, records, and documents for its archives. If Contractor or one of its subcontractors desires later to use any of the Work Product generated or obtained by Contractor or any of its subcontractors in connection with the Deliverables, it must secure the prior written approval of NTTA. Contractor agrees that NTTA will own all right, title, and interest worldwide in and to the intellectual property associated with the Work Product including, without limitation, all patent rights, copyrights, trademark and service mark rights, trade secret rights, contract and licensing rights, and claims and causes of action with respect to any of the foregoing, whether now known or hereafter to become known and whether arising under U.S. or foreign intellectual property law. To this end, all Work Product will be considered work made for hire for NTTA. If any of the Work Product may not, by operation of law or agreement, be considered work made by Contractor for hire for NTTA (or if ownership of all rights therein do not otherwise vest exclusively in NTTA immediately), Contractor hereby automatically assigns, upon creation of such Work Product, the ownership thereof to NTTA. Contractor irrevocably relinquishes for the benefit of NTTA and its assigns any rights in the Work Product recognized by applicable law. NTTA will have the right to obtain and hold, in whatever name or capacity it selects, any U.S. (state and federal) and international copyright registrations, U.S. (state and federal) and international trademark and service mark registrations, and U.S. and international patents in the Work Product, along with any other applicable intellectual property protection in the Work Product available in the U.S. or internationally.

(b) If for any reason the agreement of NTTA and Contractor set forth in Section 10(a) regarding the ownership of Work Product and other materials is determined to be unenforceable, either in whole or in part, Contractor assigns and agrees to assign to NTTA all right, title, and interest that Contractor may have or at any time acquire in said Work Product and other materials, without royalty, fee, or other consideration of any sort, and without regard to whether this Agreement has terminated or remains in force, and Contractor shall provide all reasonably requested assistance to effectuate such assignment, including executing any documents necessary or useful for that purpose. Notwithstanding anything contained herein to the contrary, Contractor will have no liability for the use by NTTA of any Work Product or Deliverable generated by Contractor under this Agreement on any project other than for the specific purpose for which the Work Product or Deliverable was prepared. Any other use of such Work Product without the prior written consent of Contractor will be at the sole risk of NTTA. **The foregoing notwithstanding, Contractor agrees to indemnify, defend, and hold NTTA, its officers, directors, agents, and employees harmless against any and all claims, suits, liabilities, judgments, and expenses and losses (including reasonable attorneys' fees and costs), at law or in equity, attributable, in whole or in part, to claims of third parties that use of the Work Product or NTTA's use of the Work Product infringes the intellectual property rights of another.**

(c) Notwithstanding any provision to the contrary contained in this Agreement, Contractor will retain sole ownership to its preexisting proprietary information, including but not limited to Contractor's pre-existing computer programs, software, standard details, figures, templates, and specifications.

(d) If required by NTTA, Contractor will furnish, and the Deliverables will include, as needed, instructions and development and maintenance of documentation, such as standard operating procedures, user guides, and associated peripherals, for the use of the Deliverables, as mutually agreed upon by NTTA and Contractor.

11. CONFLICTS OF INTEREST

(a) Contractor represents and warrants to NTTA as of the Effective Date and throughout the Term that it, its subcontractors, and their respective owners, directors, officers, employees, and agents (collectively, "Affiliated Entities"): (i) have no financial or other beneficial interest in any contractor, product, or service evaluated or recommended by Contractor, except as expressly disclosed in writing to NTTA, (ii) will discharge their responsibilities under this Agreement professionally, impartially, and independently, and after considering all relevant information related thereto, and (iii) is under no contractual or other restriction or obligation, the compliance with which is inconsistent with the execution of this Agreement or the performance of its obligations hereunder.

(b) Contractor represents and warrants to NTTA as of the Effective Date and throughout the Term that the Affiliated Entities have no prohibited business or familial relationship as described and governed by Chapter 573 of the Texas Government Code, other applicable law, NTTA Board of Director's Ethics Policy, NTTA Employee Ethics Policy, or NTTA Procurement Policy with a board member, employee, or agent of NTTA, except as disclosed in an affidavit sworn to by an authorized representative of Contractor in a form acceptable to NTTA.

(c) Contractor and its subcontractors will not knowingly support, advance, or endorse any project, plan, position, or initiative that is hostile to NTTA's announced position or interests. If Contractor or any of its subcontractors believes that another client is seeking services or support

for such a matter, it must contact NTTA immediately. NTTA will determine if (and the extent to which) the matter is hostile to NTTA's position or interests, and what steps, if any, are required, which may include Contractor or the subcontractor declining work offered by another party. A project, plan, position, or initiative is "hostile" to NTTA's position or interests if it (a) substantially and materially conflicts with, (b) is substantively incompatible with, or (c) is overtly antagonistic to such position or interests. NTTA will afford Contractor a reasonable opportunity to present alternatives or modifications to NTTA's required action(s) or to otherwise address NTTA's concerns. However, in no event will NTTA be required to expend more money or work with different employees or representatives of Contractor than it would have if the conflict did not exist. After providing Contractor with such opportunity to present alternatives or modifications, NTTA will choose which, if any, of the alternatives are acceptable to NTTA, in its sole discretion, and NTTA's decision will be final.

(d) If required by Section 2252.908 of the Texas Government Code, Contractor shall submit a disclosure of interested parties in the form required by the Texas Ethics Commission. Such disclosure shall be submitted at the same time that the executed version of this Agreement is submitted to NTTA for approval.

12. REQUEST FOR DELIVERABLES

The Request for Bids ("RFB") or Request for Proposals ("RFP") (as applicable) under which NTTA sought the Deliverables is hereby incorporated into this Agreement by reference for all purposes, as are the recitals at the beginning of this Agreement and all exhibits attached to this Agreement. In the event of any conflict between this Agreement and the documents that are incorporated by reference into this Agreement, the order of precedence specified in Section 17(z) shall govern.

13. NTTA INDEMNIFIED

(a) AS USED IN THIS SECTION, THE FOLLOWING TERMS WILL HAVE THE MEANINGS INDICATED:

(i) "CONTRACTOR PARTY" MEANS A PERSON OR ENTITY WHO IS AN OWNER, MANAGER, DIRECTOR, OFFICER, EMPLOYEE, CONTRACTOR, OR AGENT OF CONTRACTOR.

(ii) "INDEMNIFIED PARTY" MEANS NTTA OR ANY PERSON OR ENTITY WHO IS A DIRECTOR, OFFICER, ADMINISTRATOR, EMPLOYEE, OR AGENT OF NTTA (EXCLUDING CONTRACTOR AND ANY CONTRACTOR PARTY).

(iii) "LITIGATION EXPENSE" MEANS FEES, COURT COSTS, MEDIATION OR ARBITRATION FEES OR COSTS, WITNESS FEES, OR OTHER FEES OR COSTS OF INVESTIGATING, DEFENDING, OR ASSERTING A CLAIM FOR INDEMNIFICATION UNDER THIS SECTION, INCLUDING, WITHOUT LIMITATION, REASONABLE ATTORNEYS' FEES AND EXPENSES.

(iv) "LOSS" MEANS ANY AND ALL LOSS, LIABILITY, CLAIM, COST, CAUSE OF ACTION, PENALTY, OR DAMAGE (INCLUDING PUNITIVE DAMAGES), WHETHER BASED IN CONTRACT, TORT, OR STRICT LIABILITY, ARISING OUT OF OR RELATING TO ANY OF THE FOLLOWING:

(A) ANY BREACH BY CONTRACTOR OR A CONTRACTOR PARTY OF ANY REPRESENTATION OR WARRANTY UNDER THIS AGREEMENT; OR

(B) ANY BREACH OR OTHER FAILURE BY CONTRACTOR OR A CONTRACTOR PARTY TO PERFORM IN ACCORDANCE WITH THE TERMS OF THIS AGREEMENT ANY OBLIGATION, COVENANT, OR OTHER AGREEMENT OF CONTRACTOR UNDER THIS AGREEMENT; OR

(C) ANY ERROR, OMISSION, OR NEGLIGENT ACT BY CONTRACTOR OR A CONTRACTOR PARTY RELATED TO CONTRACTOR'S OR A CONTRACTOR PARTY'S (1) PERFORMANCE OF (OR FAILURE TO PERFORM) ITS OBLIGATIONS UNDER THIS AGREEMENT OR (2) PROVISION OF GOODS OR SERVICES UNDER THIS AGREEMENT, WITHOUT REGARD TO WHETHER SUCH PERSONS WERE OR ARE UNDER THE DIRECTION OF AN INDEMNIFIED PARTY.

(b) CONTRACTOR WILL DEFEND, INDEMNIFY, AND SAVE AND HOLD HARMLESS EACH INDEMNIFIED PARTY FROM AND AGAINST (i) EACH AND EVERY LOSS SUFFERED OR CLAIMED AGAINST ANY INDEMNIFIED PARTY AND (ii) ANY LITIGATION EXPENSE INCURRED BY ANY INDEMNIFIED PARTY.

(c) IF AN INDEMNIFIED PARTY IS FOUND TO BE PARTIALLY AT FAULT FOR A LOSS, CONTRACTOR WILL NEVERTHELESS, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, DEFEND, INDEMNIFY, AND SAVE AND HOLD HARMLESS EACH INDEMNIFIED PARTY FROM AND AGAINST THE PERCENTAGE OF THE LOSS AT LEAST EQUAL TO THE PERCENTAGE OF FAULT ATTRIBUTABLE TO CONTRACTOR AND ALL CONTRACTOR PARTIES.

(d) NOTWITHSTANDING SECTION 17(f), INDEMNIFIED PARTIES OTHER THAN NTTA ARE THIRD-PARTY BENEFICIARIES OF THIS AGREEMENT TO THE EXTENT OF CONTRACTOR'S OBLIGATIONS UNDER THIS SECTION. ANY MODIFICATION OF THIS AGREEMENT BY NTTA WILL BE BINDING ON ALL OTHER INDEMNIFIED PARTIES.

(e) THE PROVISIONS OF THIS SECTION WILL SURVIVE THE TERMINATION OF THIS AGREEMENT FOR ANY REASON, INCLUDING PURSUANT TO ANY TERMINATION RIGHT PROVIDED FOR OR ALLOWED HEREUNDER.

14. LIQUIDATED DAMAGES

[Intentionally deleted.]

15. LITIGATION EXPENSES

If any legal action or other proceeding is brought under this Agreement, in addition to any other relief to which the successful or prevailing party ("Prevailing Party") is entitled, the Prevailing Party is entitled to recover from the non-Prevailing Party reasonable attorneys' fees and all court costs and Litigation Expenses (as defined in Section 13(a)(iii)), even if not recoverable by law as court costs (including, without limitation, all fees, taxes, costs, and expenses incident to appellate, bankruptcy, and post-judgment proceedings), incurred in that action or proceeding and all appellate proceedings. For purposes of this Section, the term "attorneys' fees" includes, without

limitation, paralegal fees, investigative fees, expert witness fees, administrative costs, disbursements, and all other charges billed to the Prevailing Party by its attorneys.

16. CONFIDENTIALITY

(a) "Confidential Information" is (i) all information relating to NTTA or its operations (whether in writing or otherwise) that has been provided or shown to Contractor or any of its representatives by or on behalf of NTTA and (ii) all notes, analyses, compilations, studies, and other materials containing or in any way derived from information described in Subsection (a)(i) above; however, Confidential Information does not include information that becomes generally publicly available other than as a result of disclosure by Contractor or any of its representatives in violation of this Section.

(b) Except as otherwise required by applicable law, Contractor will not, and will not allow its representatives to, use the Confidential Information for any purpose other than as contemplated by this Agreement or disclose Confidential Information to any person or entity other than its representatives that (i) need to know the Confidential Information for the purposes contemplated by this Agreement, (ii) are first approved by NTTA, and (iii) agree to be bound by the provisions of this Subsection. Promptly upon NTTA's written request, Contractor will return to NTTA or destroy all Confidential Information held by Contractor or its representatives. If Contractor destroys Confidential Information, it will so certify in writing and promptly deliver to NTTA reasonably acceptable supporting evidence of the destruction. If Contractor or any of its representatives is requested or required under applicable law to disclose Confidential Information, Contractor will promptly notify NTTA in writing and cooperate with NTTA in lawful actions to prevent disclosure.

(c) Contractor acknowledges and agrees that a breach of this Section by Contractor causes NTTA irreparable harm for which an award of money damages is inadequate; therefore in the event of a breach or threatened breach of this Section, in addition to remedies available at law, NTTA is entitled to equitable relief, including injunctive relief and specific performance, without proof of actual damages. **CONTRACTOR WILL INDEMNIFY AND DEFEND NTTA, ITS DIRECTORS, OFFICERS, ADMINISTRATORS, AND EMPLOYEES AGAINST ALL DAMAGES, LOSSES, COSTS, LIABILITIES, AND EXPENSES (INCLUDING ATTORNEYS' FEES AND LITIGATION EXPENSES (AS DEFINED HEREIN)), ARISING OUT OF OR RELATING TO ANY UNAUTHORIZED USE OR DISCLOSURE BY CONTRACTOR OR ITS REPRESENTATIVES OF THE CONFIDENTIAL INFORMATION OR ANY OTHER VIOLATION OF THIS SECTION.** Each Contractor employee, subcontractor, or subcontractor employee assigned to work on the Deliverables will sign any confidentiality and security document required by NTTA.

(d) Contractor further agrees that it will comply with all requirements of the Information Security Addendum attached hereto as Exhibit E.

17. MISCELLANEOUS

(a) Personnel, Equipment, and Material. Except as otherwise specified, Contractor will furnish and maintain, at its own expense, adequate and sufficient personnel, equipment, supplies, transportation, and material to provide the Deliverables as required under this Agreement. All employees and subcontractors of Contractor will have such knowledge and experience as will enable them to perform the duties assigned to them. Any employee or subcontractor of Contractor who, in the sole opinion of NTTA, is incompetent or by his or her work or conduct becomes

detrimental to the provision of the Deliverables, will, upon the request of NTTA, immediately be removed from association with work being performed for NTTA under this Agreement.

(i) Contractor will obtain from all subcontractors, and cause to be extended to NTTA, appropriate representations, warranties, guarantees, and obligations for all Deliverables furnished by subcontractors, which (1) will be written to survive NTTA's inspections, tests, and approvals and (2) will run directly to Contractor and NTTA and be enforceable by Contractor or NTTA and their respective successors and assigns. Contractor assigns to NTTA all of Contractor's rights and interest in all extended warranties received by Contractor from its subcontractors. To the extent that any subcontractor warranty or guaranty would be voided by reason of Contractor's error or omission, Contractor will be responsible for correcting such defect. At NTTA's direction, Contractor will enforce each representation, warranty, guaranty, or obligation of its subcontractors. These provisions concerning subcontractor warranties are intended to provide NTTA with additional recourse if the Deliverables fail to meet the requirements of this Agreement, and in no event will they modify, limit, discharge, release, negate, or waive Contractor's own warranties or obligations. Contractor will not be entitled to use subcontractor warranties as a defense to Contractor's obligations under this Agreement.

(ii) As required under Section 2251.022 of the Texas Government Code, when Contractor receives a payment from NTTA under this Agreement, Contractor will pay each subcontractor entitled to a portion of such payment the subcontractor's appropriate share of the payment not later than the 10th day after the date Contractor receives the payment from NTTA. Contractor will also comply with all other applicable laws pertaining to its payment or use of any subcontractor. Upon NTTA's request, Contractor will timely furnish NTTA with satisfactory proof of its compliance with this Subsection (ii).

(b) Acts and Limitations of NTTA. NTTA may assign responsibility of NTTA's roles and responsibilities to persons, corporations, firms, or other entities as NTTA may designate, except as otherwise provided in this Agreement or by law. Notwithstanding anything herein to the contrary, all covenants and obligations of NTTA under this Agreement will be deemed to be valid covenants and obligations only to the extent authorized by the Act and permitted by the laws and the Constitution of the State of Texas, and no officer, director, or employee of NTTA will have any personal obligations or liability hereunder.

(c) Waiver. The failure of either Party to object to or to take affirmative action with respect to any conduct of the other Party which is in violation of the terms hereof will not be construed as a waiver of such failure, nor of any subsequent breach or wrongful conduct. The rights and remedies set forth herein are intended to be cumulative, and the exercise of any right or remedy by either Party will not preclude or waive its exercise of any other rights or remedies hereunder, at law or in equity.

(d) Independent Contractor Status. Contractor will be and act as an independent contractor under this Agreement. Under no circumstances will this Agreement be construed as one of agency, partnership, joint venture, or employment between the Parties. Contractor acknowledges and agrees that neither it nor any of its employees or subcontractors or subcontractors' employees will be considered an employee of NTTA for any purpose. Contractor will have no authority to enter into any contract binding upon NTTA or to create any obligation on behalf of NTTA without express written authorization from the Executive Director of NTTA. Under no circumstances will Contractor or its employees, agents, or subcontractors represent that such entity or individual(s) serves NTTA in any capacity other than as an independent contractor.

Contractor is solely responsible for its employees' and subcontractors' work, as well as for providing all necessary training, instruction, and supervision to its employees and subcontractors necessary for Contractor's delivery of the Deliverables in accordance with this Agreement. Notwithstanding the foregoing, work by Contractor to be performed at NTTA's offices or on NTTA's premises must be conducted during business hours for NTTA, which are 8:00 a.m. to 5:00 p.m., Monday through Friday, excluding NTTA holidays, unless otherwise coordinated with and approved by NTTA's Executive Director or his or her designee.

Nothing contained in this Agreement will be deemed or construed to create any liability for NTTA with respect to the liabilities, obligations, or acts of Contractor, its employees, agents, subcontractors, or any other person.

Contractor understands and agrees that NTTA will not be responsible or liable in any respect for any losses suffered by any Contractor-related entity by reason of use of any information provided by NTTA. Contractor further acknowledges and agrees that (i) if and to the extent Contractor or anyone on Contractor's behalf uses any information provided by NTTA in any way, such use is made on the basis that Contractor, not NTTA, has approved and is responsible for said information and (ii) Contractor is capable of conducting, and is obligated hereunder to conduct, any and all studies, analyses, and investigations as it deems advisable to verify or supplement said information, and use of said information is entirely at Contractor's own risk and at its own direction.

(e) Assignment; Successors; Beneficiaries. Contractor has no right or authority to assign its rights and/or obligations or to delegate its duties under this Agreement without NTTA's prior written approval, which may be granted, conditioned, or withheld at NTTA's sole discretion. Any attempted assignment or delegation without such approval will be void and constitute a material breach of this Agreement. NTTA may assign its rights or delegate performance of its obligations under this Agreement to any successor of NTTA or to any other person or entity to which NTTA is authorized by applicable law to make such assignment or delegation. This Agreement and all of the terms and provisions hereof will be binding upon, and will inure to the benefit of, the Parties and their respective approved successors and assigns. A Party's permitted assignment of rights under this Agreement is deemed to be a simultaneous delegation to the assignee of the assigning Party's obligations under this Agreement. By accepting an assignment, the assignee assumes the assigning Party's performance obligations hereunder. Provided, however, an assignment by Contractor does not release Contractor from its obligations under this Agreement unless NTTA expressly releases Contractor in writing and the permitted assignee expressly assumes Contractor's obligations under a written agreement executed by NTTA, Contractor, and Contractor's assignee.

(f) No Third-Party Beneficiaries. Except as otherwise set forth herein, nothing in this Agreement nor in any approval subsequently provided by either Party hereto will be construed as giving any benefits, rights, remedies, or claims to any other person, firm, corporation, or other entity, including, without limitation, the public in general or any member thereof, or authorizing anyone not a party to this Agreement to maintain a suit for personal injuries, property damage, or any other relief at law or in equity in connection with this Agreement.

(g) No Contingent Fees. Contractor warrants that it has neither employed nor retained any third party to solicit or secure this Agreement and that it has not paid or agreed to pay any such party any commission or other consideration contingent upon or resulting from the award of this Agreement. In the event of a breach or violation of this warranty, NTTA will have the right to

terminate this Agreement without liability or, in its sole discretion, to deduct such amount from Contractor's compensation hereunder.

(h) Texas Franchise Tax Certification. Contractor certifies that it is not delinquent in its Texas Franchise Tax Payments or, alternatively, that it is exempt from, or not subject to, such tax. A false statement concerning Contractor's franchise tax status will constitute grounds for termination of this Agreement at the sole option of NTTA.

(i) Sales and Use Tax. The stated amounts of all payments to be made by NTTA to Contractor pursuant to this Agreement are inclusive of federal, state, or other taxes; provided, however, that NTTA acknowledges and represents that it is a tax-exempt entity under Sections 151.309, et seq., of the Texas Tax Code. As applicable, NTTA will provide a Tax Exemption Certification ("TEC") to Contractor to avoid sales and use taxes on any purchases made on behalf of NTTA under this Agreement. Contractor will use the TEC solely for purchases made under this Agreement. Contractor will not be reimbursed for taxes assessed on any purchase to which NTTA's exemption applies. All copies of the TEC will be destroyed by Contractor upon termination of this Agreement.

(j) Conferences. At the request of NTTA, Contractor will provide appropriate personnel for meetings related to the Deliverables or NTTA matters at Contractor's offices, the various offices of NTTA or its contractors, or any other reasonably convenient location.

(k) Governing Law; Venue. This Agreement, including, without limitation, its validity, interpretation, construction, performance, and enforcement, will be governed and construed in accordance with the laws of the State of Texas (without giving effect to its conflicts of laws principles). The Parties acknowledge that venue is proper in Collin County, Texas, for any legal action, proceeding, claim, or dispute arising under or in connection with this Agreement and waive the right to sue or be sued elsewhere; such waiver includes, without limitation, waiver of any claim that a court in Collin County, Texas, is an inconvenient forum. Each Party submits to the exclusive jurisdiction of any court of the State of Texas sitting in Collin County, Texas.

(l) Headings. Section and Subsection headings set forth herein are for convenience only and do not constitute a substantive part of this Agreement

(m) Counterparts. This Agreement may be executed in two or more counterparts, which, taken together, will constitute one and the same instrument.

(n) Severability. If any provision of this Agreement is deemed to be invalid or unenforceable by any court of competent jurisdiction, then the balance of this Agreement will remain enforceable, and such invalid or unenforceable provision will be enforced by such court to the maximum extent possible.

(o) Entire Agreement; Exhibits and Attachments; Amendments. This Agreement, including all exhibits and attachments hereto, which are hereby incorporated into and made a part of this Agreement, is the final, complete, and exclusive understanding between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, whether oral or written. Neither Party has relied on any statement, representation, warranty, or agreement other than those expressly contained in this Agreement, and there are no conditions precedent to either Party's obligations except as expressly stated in this Agreement. This Agreement cannot be amended or waived except by an agreement in writing signed by authorized representatives

of both Parties and specifically referring to this Agreement. The recitals at the beginning of this Agreement and all attachments hereto are made a part of this Agreement for all purposes.

(p) Time is of the Essence. Time is of the essence with respect to the provision of all the Deliverables that must be provided by a specified, agreed-upon completion or delivery date. Contractor will promptly advise NTTA in writing of any problems, delays, or adverse conditions that will materially affect Contractor's ability to meet schedules for provision of Deliverables or favorable developments that may enable Contractor to provide Deliverables sooner than anticipated. If at any time during the Term, Contractor cannot provide the Deliverables within the time required, NTTA, without limiting any other remedy available under this Agreement, at law or in equity, reserves the unilateral right to procure, at Contractor's cost and expense, the Deliverables from any other source.

(q) Interpretation. Contractor acknowledges that it has had satisfactory and sufficient opportunity to review the terms and conditions of this Agreement, including, at its option, with its legal counsel. Accordingly, no provision of this Agreement will be construed against or interpreted to the disadvantage of any Party by any court, other governmental or judicial authority, or arbiter by reason of such Party being deemed to have drafted or prepared such provision.

(r) Revolving Door. NTTA has adopted an Employee Ethics Policy (available for review at https://www.ntta.org/whoweare/policies/Pages/default.aspx) that includes the following "revolving door" provision: "An employee after leaving NTTA employment shall not participate on behalf of any third party in a matter involving the NTTA in which the employee participated while employed at the NTTA. For purposes of this Subsection, an employee participated in a matter if the employee made a decision or recommendation on the matter, approved, disapproved, or gave advice on the matter, conducted an investigation related to the matter, or took similar action related to the matter." Absent express written approval from NTTA, Contractor will not direct or allow a former NTTA employee to do any work on behalf of Contractor that might put the former employee in violation of this provision for a period of two years following termination of employment with NTTA. Except as otherwise agreed to in writing, Contractor and NTTA will not actively recruit or otherwise induce the other Party's employees to accept employment with such Party during the period of performance of this Agreement. However, subject to restrictions imposed by applicable provisions of NTTA Employee Ethics Policy, this provision will not restrict the right of either Party to solicit generally for personnel or restrict employees of either Party from pursuing, on their own initiative, employment opportunities with the other Party.

(s) Vendor Policing of Employee Ethics. NTTA's Employee Ethics Policy directs its employees to avoid conflicts of interest or appearances of impropriety, comply with the law, and use NTTA's property for only NTTA's purposes. Contractor is expected to be aware of these requirements and promptly report to NTTA any conduct by an NTTA employee that Contractor reasonably believes may be in violation of such Policy.

(t) Public Information Act. This Agreement, the Deliverables, and the Work Product are or will become the property of NTTA and may be subject to disclosure under the Public Information Act (Texas Government Code Chapter 552). Contractor covenants to familiarize itself with the provisions of that act. In no event will NTTA or any of its agents, representatives, operators, directors, officers, or employees be liable to Contractor for the disclosure of all or any portion of this Agreement, the Deliverables, or the Work Product. If NTTA receives a request for public disclosure of any portion of Contractor's information that has been provided to NTTA, to the extent required by law, NTTA will notify Contractor of the request and give Contractor an opportunity to assert, in writing, a claimed exception under the Public Information Act or other

applicable law within the time period specified by law. NTTA may elect to seek one or more exceptions to disclosure under the act; nonetheless, Contractor will be solely responsible for ascertaining and forwarding its claims for exceptions directly to the Office of the Attorney General. If Contractor has special concerns about information that it makes available to NTTA and which it believes is confidential or constitutes a trade secret, proprietary information, or other information excepted from disclosure, Contractor agrees to specifically and conspicuously designate that information as such in writing.

(u) Extra Work. If, for reasons beyond the control of Contractor, Contractor is directed by NTTA to (i) make changes to Deliverables already satisfactorily delivered and accepted by NTTA; or (ii) perform additional services of such magnitude that they are clearly beyond the Scope of Work, and the changes and/or additional work are so recognized by NTTA, such changes and/or additional work will be considered "Extra Work." To avoid delays in implementing required work, NTTA reserves the right of final decision regarding whether work constitutes Extra Work, said decision to be made in its reasonable discretion. No compensation will be made for additional work or revisions required due in any way to the error, omission, or fault of Contractor, its agents, representatives, or subcontractors or the employees of any of them. All Extra Work will require the prior written approval and authorization of NTTA. Compensation for approved Extra Work will be negotiated as set forth in a modification to this Agreement documenting the Extra Work.

(v) Suspension or Modification; Delays and Damages. NTTA may elect to suspend Contractor's delivery of the Deliverables, but not terminate this Agreement, by providing Contractor with written notice at least 14 days before the effective date of such suspension. Delivery may be reinstated and resumed in full force and effect upon Contractor's receipt from NTTA of 30 days' prior written notice, or a shorter period if agreed to by the Parties, requesting same. Contractor will not be entitled to any damages or other compensation of any form if NTTA exercises its right to suspend the delivery of the Deliverables; however, the period for delivery will be extended for a period of time determined by NTTA in its sole discretion to allow for said suspension. Such extension will be Contractor's exclusive remedy for delays, inconvenience, or other harms from such suspension. Similarly, NTTA may expand, limit, or cancel any portion of the work previously assigned to Contractor in accordance with this Agreement. Permitting Contractor to deliver the Deliverables or any part of them after the originally specified date for delivery or after the date to which the time for delivery may have been extended will in no way operate as a waiver on the part of NTTA of any of its rights under this Agreement.

(w) Reports of Accidents; Notices/Summons. Within 24 hours after an accident or event that: (i) causes or may cause injury to any third party or to the property of any third party (including an employee or subcontractor of Contractor), (ii) arises in connection with any action or failure to act by Contractor or its employee, subcontractor, or agent, and (iii) occurs on NTTA property or in connection with the provision of the Deliverables under this Agreement, Contractor will send a written report to NTTA, describing the accident or event. Contractor also will immediately send NTTA a copy of any summons, subpoena, notice, or other documents served upon or received by Contractor, its agents, employees, subcontractors, or representatives in connection with any investigation or matter before any court or administrative agency arising from Contractor's provision of the Deliverables under this Agreement.

(x) Referral of Third-Party Inquiries. All personnel of Contractor and its subcontractors will refer all media inquiries concerning NTTA or matters Contractor is handling pursuant to this Agreement to NTTA's Public Affairs Department.

(y) Publicity. Neither Contractor nor NTTA, nor any third party on either Party's behalf, will publish, distribute, or otherwise disseminate any press release, advertisement, or public statement making any reference to the other Party's products, services, or information pertaining to this Agreement, unless and until such matter has been submitted to and approved in writing by the other Party. Where approved by the other Party, the Parties will mutually agree on the form, content, and timing of any press releases or other publicity.

(z) Order of Precedence. Contractor will notify NTTA of any conflict or inconsistency arising between this Agreement and the documents that are incorporated by reference into this Agreement. NTTA will determine a final resolution of any conflict or inconsistency using the following order of precedence: (1) the body of the Agreement, (2) the Scope of Work, and (3) any other exhibit or attachment to this Agreement. Each of (1), (2), and (3) shall control any other separate document incorporated into this Agreement by reference. Under no circumstances will conflicts or inconsistencies result in increases to the total value of an individual contract line or other element of compensation or result in a schedule extension for completion of the Deliverables or any portions thereof.

18. SOC 2 TYPE II AUDIT REQUIREMENT

[Intentionally deleted.]

[*Signature page follows.*]

IN WITNESS WHEREOF, the Parties have executed this Agreement to be effective as of the last date set forth below (the “Effective Date”).

NTTA	**CONTRACTOR**
North Texas Tollway Authority, a regional tollway authority and a political subdivision of the State of Texas	**[Vendor Name],** a _____
By:_____	By:_____
Name:_____	Name:_____
Title:_____	Title:_____
Date of Execution: _____	Date of Execution: _____

Exhibit A

Scope of Work

A. Background

The North Texas Tollway Authority Maintenance Department is seeking to contract for facility janitorial services at the Gleneagles Office Complex at 5900 and 5910 West Plano Parkway in Plano, Texas 75093 consists of a single one-story building approximately 79,000 square feet and a single two story building approximately 67,000 square feet.

B. Supplies, Materials and Equipment

Cleaning Supplies - All products are to be above average and should meet manufacturer's specifications, if required. The NTTA reserves the right to change supplies, materials and equipment used at the facility.

1. All cleaning chemicals, supplies and equipment required for cleaning **shall be included in the base price for cleaning.** Cleaning products and equipment used shall be of good quality and repair.

2. After execution of the contract and prior to starting the work, the Contractor shall submit a list of the specific products to be used on the facility. All cleaning agents and disinfectant supplies shall be approved by the NTTA Project Manager.

3. NTTA will provide consumable supplies used by NTTA personnel such as soap, hand sanitizer, paper towels, toilet paper and trash bags. The contractor shall be responsible for ensuring that all dispensers (paper towel, toilet paper, soap, hand sanitizer) located throughout the properties are refilled using products provided by NTTA. Contractor shall communicate with NTTA Project Manager when additional product refills are needed.

4. Some space will be provided on-site for storage of cleaning materials, equipment and machinery. Contractor is to keep lockers, supply storage and slop sink areas clean and tidy.

5. NTTA will not receive shipments of products on behalf of the contractor at NTTA facilities. Contractor shall receive or pickup products at their own facility and transport to the NTTA facilities where products and equipment are to be used.

C. Operational Requirements

1. Standards
   All areas shall be cleaned to an Association of Physical Plant Administrators (APPA) level one or level two as indicated in section K. Precautions shall be taken to avoid damage to existing structures and site work. All work shall be performed in a safe manner to protect the operators, the occupants and any pedestrians.

2. Holidays
   Official Holidays are established each year. For most years, the following holidays have been observed by NTTA: New Year's Day, Martin Luther King Birthday, Memorial Day, Good Friday, Independence Day, Labor Day, Thanksgiving (2) Days and Christmas (2) Days.

3. Special Notification
   The Contractor will notify in writing, ten (10) business days in advance of application to the NTTA Management Staff any chemical that will require special notification to employees and/or site preparation.

4. Scheduling of Janitorial Operations
   Day porters shall be provided for work during normal business hours 7:30am to 4:30pm, 5 days a week, Monday through Friday.

   Morning/ evening / night / weekend staff shall be provided 5 days a week, Sunday through Thursday for areas requiring only 5-day cleaning and 6 nights a week, Sunday through Friday for areas requiring 6-day cleaning.

   These cleaning crews shall be sized based on the bidders' experience to get the work completed in the time desired and to achieve the required results according to the specifications of this RFB.

   All work shall be performed in a manner to cause the least amount of disruption to daily activity. Special cleaning or other work requested by Facilities Manager or designee may be performed during normal work hours if requested; otherwise, it shall occur along with the regularly scheduled evening cleaning. Work being performed on an overtime basis will be at the contractor's sole expense unless prior approval is obtained from the Facilities Manager or designee or is part of the Bid Sheet. Work schedules are to be consistent with all security and safety programs and procedures.

5. Workmanship

During maintenance operations, all areas shall be kept neat and clean. Precautions shall be taken to avoid damage to existing structures and site work. All work shall be performed in a safe manner to protect the operators, the occupants and any pedestrians.

Upon completion of janitorial operations, all debris and waste material shall be cleaned up and removed from the site, unless provisions have been granted by the Facility Manager or designee to utilize on site trash receptacles.

Any damage to any structures or the site caused by the Contractor shall be repaired immediately by the Contractor without charge to the Authority.

D. Personnel

Contractor's personnel shall be neat in appearance consistent with industry standards. Uniforms are mandatory but may consist of company tee-shirts and slacks (same color and style). Contractor's company logo/name must appear on at least one article of clothing (i.e. tee-shirt, jacket, hat, etc.) for each employee so as to make company identification possible. No part of their clothing should have holes or stains. Personnel are required to be appropriately dressed at all times while working on the property. Contractor's employees are to have all OSHA required safety apparel and equipment to wear or to use when working on-site.

1. Project Manager
   a. The Contractor will provide a Project Manager, area manager or other such designated employee who shall be responsible for the management and scheduling of the work to be performed under this Service Agreement.
   b. **The Project Manager must be able to speak, read and write in English**. The Project Manager shall be available during normal working hours and must be able to communicate via e-mail and be able to use a computer to accept and respond to requests and other items related to this contract with representative of the NTTA.
   c. The Project Manager shall be designated by the Contractor as the authority to act on behalf of the Contractor on a day-to-day basis, and shall be able to sign for notices, inspection reports and other correspondence on behalf of the Contractor.
   d. The Project Manager shall have intimate knowledge of the Service Agreement and its various cleaning tasks, equipment and materials.
   e. The Project Manager must be able to properly train, direct and control the cleaning personnel in their individual tasks to meet the terms of the Service Agreement.
   f. The Project Manager must be able to conduct weekly inspections and follow-up programs. The PM shall provide documentation of the inspections to NTTA on a weekly basis. The Project Manager and/or the Assistant Project Manager shall be accessible to NTTA staff twenty-four hours a day, seven days a week.
   g. The Project Manager must provide communication by email, cell phone, and office phone.

2. Supervisors
    a. The Contractor will ensure that all work required under this Service Agreement is satisfactorily supervised by providing the appropriate number of sufficiently trained and qualified competent supervisors.
    b. Each supervisor shall be **capable of verbal and written communication in English** and shall be able to effectively communicate to those under their supervision.
    c. Supervisor shall be available to respond to requests from on-site cleaning personnel.
    d. Supervisor shall make at least **one site visit per day** to verify on-site work is being properly performed.
    e. Supervisors shall be familiar with the terms of the Service Agreement and its various cleaning tasks, equipment and materials.
    f. Supervisors must be able to both properly train and direct the cleaning personnel in their individual tasks and to maintain and control an effective inspection, supervision and follow-up program.
    g. The NTTA reserves the right to request the removal of unsatisfactory supervisors, review resumes and meet supervisory replacements prior to hiring.
    h. The Supervisor must provide communication by email, cell phone, and office phone.

3. On-Site Supervisors or Lead Supervisors
    a. The Contractor will ensure that all work required under this Service Agreement is satisfactorily supervised by providing the appropriate number of sufficiently trained and qualified competent supervisors.
    b. Each supervisor shall be **capable of verbal and written communication in English** and shall be able to effectively communicate to those under their supervision.
    c. On-site supervisors shall be familiar with the various cleaning tasks, equipment and materials required under this contract.
    d. On-site supervisors must be able to direct the cleaning personnel in their individual tasks and to maintain and control an effective inspection, supervision and follow-up program in absence of the Supervisor.
    e. The NTTA reserves the right to request the removal of unsatisfactory supervisors, review resumes and meet supervisory replacements prior to hiring.
    f.

4. Day Porters
    a. The Contractors shall provide 2 full time day porters (at least one male and one female) at each Gleneagles Building (5900 and 5910).
    b. The porters shall be provided for 40 hours per week, 8 hours a day, 5 days a week

- Monday through Friday.

c. These positions are highly visible. It is expected that the personnel in these positions shall bring a high level of cleaning expertise and professionalism to the property.

d. <u>During periods of absence by a porter due to illness or vacation, a replacement shall be provided by contractor at no additional expense.</u>

e. Fulltime or onsite supervision of porters is not required. Daily activities shall be overseen by the NTTA personnel.

f. At least **one day porter** per building per shift shall be **<u>capable of verbal and written communication in English</u>** and shall be able to effectively communicate to NTTA personnel.

g. General description of services provided by Day Porters:
    i. Their primary purpose is to perform a continuous, rotational cleaning of all toilet rooms, break rooms and public spaces throughout the property, and wipe down of all high traffic surface areas. These areas are to be kept stocked with soap and paper products and kept free from trash and debris.
    ii. General cleaning such as trash and vacuum providing equipment with operating noise level 71 dB or below (Windsor Saber Blade 12)
    iii. Exterior entry ways, sidewalks and stairs are to be swept/blown and cleaned each morning.
    iv. Clean glass entry doors and interior glass windows.
    v. Clean exterior picnic tables and empty cigarette ash urns once per week.
    vi. Assist as needed with spills and special clean up requests.

h. It is NOT required for the contractor to provide a supervisor or on-site supervisor to direct or otherwise oversee the daily activities of the day porters. These daily activities shall be overseen by designated NTTA personnel. Contractor shall however, designate a person, such as the project manager, as the point of contact to discuss any issues related to the day porters' activities.

E. Infection Control Services

Infection control protocols have been established by NTTA during the response to the pandemic. Qualified vendors must be able to provide these services as needed during the term of the contract in addition to the other standard services detailed in this scope of work. The decision to use or discontinue these services will be at the discretion of the NTTA based on infection control protocols as established by NTTA leadership.

1. NTTA at times will need additional day porters for infection control, this would be one extra day porter for GE 5900 and 5910, these will be 8 hours each day 8:00 a.m. to 500 p.m. These infection day porters will be responsible for disinfecting all high touch areas

of the buildings continuously per work hours at their location. (see bid sheet for this line item bid for infection control day porters)

2. NTTA will at times need certain areas deep cleaned for infection control. These will be cleaned using an approved CDC process typically a misting system. These will be at the request of the Facilities manager and or designee and area needing deep cleaned will identified. Contractor will provide a per visit for these services as needed on the bid document.

F. Use of Premises

The Contractor will meet with Manager's designee to review property rules and regulations. Contractor, at minimum, will adhere to the following:

1. Contractor's equipment may not be stored on property without prior approval of the Manager's designee.

2. Contractor shall not use the premises for any reasons other than for the purposes set forth in the Service Contract.

3. The Contractor shall clean up any liquids that may drip or leak from equipment or may be spilled by the Contractor while servicing the properties.

4. Fuel will not be stored on the properties.

5. Portable fuel containers should meet OSHA standards.

6. Contractor is responsible for the cleaning of any grounds or building facilities offered for the use of the Contractor.

7. The Contractor shall not store materials other than those specifically designated for use on the properties.

G. Work Procedures

1. Notification of Staff

   a. Before the start of contract provide the names of Contractor's employees and employee's qualifications to perform the Scope of Work at each facility prior to execution of this Service Contract. Document should include all employees that may access and NTTA facility including all employees that may serve as an alternate in the instance that a Day Porter or regularly scheduled employee is unable to work.

   b. If employees performing work at the facility change during the term of this

Contract, the Manager's designee must be notified in advance of the new employee's name and qualifications prior to working at the facility. Contractor must show all new employees have passed a statewide criminal background check and drug test **before** working on NTTA property.

2. Scheduling of work

    a. All work must be scheduled in advance with the Manager's designee. Have the Manager's designee sign all service reports. Provide the Manager's designee with a copy of all signed service reports. Attach a copy of the service ticket to the invoice, if required.

3. Invoices

    a. Contractor shall submit invoice to NTTA for services on a monthly basis when invoicing for janitorial services.

H. Security

1. Contractor will meet with the Manager's designee at execution of the Service Contract to determine the level of security required on the property for each of Contractor's employees. Contractor will be responsible to properly inform his/her employees that a background check will be performed. Contractor will provide updates to the Facilities Manager or designee at the scheduled meetings regarding new employees and status of security compliance.

2. All personnel must wear visible picture identification issued by the NTTA with their name when on-site and comply with all NTTA facility security awareness policies and training. This requires all personnel to have a personal email address and pass security training before a badge can be issued. Each employee will be required to repeat the security training annually to maintain badge access to NTTA facilities.

I. Award of Services/Locations

1. Qualified responsible bidders must have local operations large enough to support the requested service levels at all facilities included in this solicitation.

2. NTTA reserves the right to award services in this contract in part or as a whole, including awarding different facilities to different contractors based on what is determined to be in the best interest of the NTTA. Bid pricing should not be contingent on award of all locations or services listed.

J. Description of Services

These specifications are written to produce performance-based results. Certain tasks may be adjusted in frequency as long as quality is not compromised, and results are delivered. Conversely, certain tasks may be increased in frequency as the industry standards change or the needs of the client increases.

K. Levels of Cleaning Service

Under the Association of Physical Plant Administrators (APPA) there are five levels of cleaning. Please reference below for standards for each level. At no time shall the level of service fall below a Level 2.

Level 1 – Orderly Spotless

This level establishes cleaning at the highest level. This is show-quality cleaning for the prime facility.

- Floors and base moldings shine and/or are bright and clean; colors are fresh. There is no buildup in corners or along walls.
- All vertical and horizontal surfaces have a freshly cleaned or polished appearance and have no accumulation of dust, dirt, marks, streaks, smudges or fingerprints.
- Washroom and shower tile and fixtures gleam and are odor free. Supplies are adequate.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 2 – Ordinary

This level is level at which cleaning should be maintained. Lower levels for washrooms, changing/locker rooms and similar type facilities are not acceptable.

- Floors and base moldings shine and/or are bright and clean. There is no buildup in corners or along walls, but there can be up to two days' worth of dirt, dust, stains or streaks.
- All vertical and horizontal surfaces are clean, but marks, dust, smudges and fingerprints are noticeable with close observation.
- Washroom and shower tile and fixtures gleam and are odor free. Supplies are adequate.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 3 – Casual

This level reflects the first budget cut, or some other staffing- related inattention problem. It is a lowering of normal expectations. While not totally acceptable, it has yet to reach an unacceptable level of cleanliness.

- Floors are swept clean, but upon observation dust, dirt and stains, as well as a buildup of dirt, dust and/or floor finish in corners and along walls, can be seen.
- There are dull spots and/or matted carpet in walking lanes and streaks and splashes on base molding.
- All vertical and horizontal surfaces have obvious dust, dirt, marks, smudges and

fingerprints.
- Lamps all work and all fixtures are clean.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 4 – Moderate

This level reflects the second budget cut, or some other significant dinginess staffing-related problem. Areas are becoming unacceptable. People begin to accept an environment lacking normal cleanliness.

- Floors are swept clean but are dull. Colors are dingy and there is an obvious buildup of dust, dirt and/or floor finish in corners and along walls. Molding is dull and contains streaks and splashes.
- All vertical and horizontal surfaces have conspicuous dust, dirt, smudges, fingerprints and marks that will be difficult to remove.
- Less than 5 percent of lamps are burned out and fixtures are dingy.
- Trash containers and pencil sharpeners have old trash and shavings. They are stained and marked. Trash cans smell sour.

Level 5 – Unkempt Neglect

This is the final and lowest level. The trucking industry would call this "just-in-time cleaning." The facility is always dirty, with cleaning accomplished at an unacceptable level.

- Floors and carpets are dirty and have visible wear and/or pitting. Colors are faded and dingy and there is a conspicuous buildup of dirt, dust and/or floor finish in corners and along walls. Base molding is dirty, stained and streaked. Gum, stains, dirt dust balls and trash are broadcast.
- All vertical and horizontal surfaces have major accumulations of dust, dirt, smudges and fingerprints, as well as damage. It is evident that no maintenance or cleaning is done on these surfaces.
- More than 5 percent of lamps are burned out and fixtures are dirty with dust balls and flies.
- Trash containers and pencil sharpeners overflow. They are stained and marked. Trash containers smell sour

GLENEAGLES OFFICE COMPLEX					
Cleaning Janitorial Specifications					
		DAILY	**WEEKLY**	**MONTHLY**	**OTHER**
GENERAL NOTES					
1	Turn off lights in all areas after cleaning, unless occupied by Tenant.	**X**			
2	NTTA will notify when special and detail cleaning is needed.				**X** **As required**
3	Carpeted areas are to be vacuumed thoroughly with special attention to areas under desks and cubicles, corners, edges, stair landings and risers.	**X**			
4	Carpeted areas are to be spot cleaned.				**X** **As needed**
5	Carpet areas are to be professionally/thoroughly cleaned semi-annually. High pressure / high temperature water / steam with vacuum extraction are the only cleaning methods allowed without prior approval.				**X** **Semi-Annually in March/ September**
6	Doors, doorframes and wall switches are to be cleaned of all smudges, handprints and marks.	**X**			
7	No items on top of desks, credenzas, office conference tables or office occasional tables are to be touched or moved.	**X**			
8	Glass top tables and glass lamps are to be handled with care and cleaned with glass cleaner.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
HIGH DUSTING					
1	Dust surfaces over six (6) feet high.	**X**			
2	Blinds will be dusted as one unit from top to bottom and not stopped at six (6) feet.				**X Annually January**
LOW DUSTING					
1	Item six (6) feet or less will be dusted.	**X**			
2	Low dusting will include, but not be limited to, cleaning of windowsills, chairs, table legs, etc.	**X**			
FLOORING					
1	Floors will be maintained as per manufactures' instructions. Information will be provided to the successful bidder.	**X**			
2	Tile Floors will be stripped, waxed and sealed.				**X Annually August**
3	Galleys and copy rooms will be wet mopped or buffed.	**X**			
4	Cove base will be protected from floor finishes or be replaced by Contractor.	**X**			
5	Wood base will be protected from vacuum cords.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
TRASH RECEPTACLES					
1	Trash must be separated in accordance with the Property Recycling Program.	**X**			
2	Empty all recycling bins (separate from trash receptacles) and transport to designated areas. Must provide weekly quantity by way of a photo of the bin showing how much has been disposed of.	**X**			
3	Line all trash receptacles with plastic bags suitable to the size of the container.	**X**			
4	Wash trash receptacles in lunch area.		**X**		
5	Empty exterior trash receptacles.	**X**			
6	Empty trash receptacles on each floor into compactor or recycling containers as appropriate.	**X**			
7	Protect flooring and other surfaces from the trash containers during cleaning operation.	**X**			
8	Trash removal equipment is to be sanitized.			**X**	
9	Stains on carpets due to transporting garbage are to be cleaned at Contractor's expense.	**X**			
PUBLIC AREAS					
1	Spot clean walls.	**X**			
2	Spot clean carpets.	**X**			
3	Clean entry door and elevator thresholds.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
EXTERIOR OF BUILDING					
1	Police exterior of building at least 25' from building for paper, cigarette butts and debris.	**X**			
2	Wash exterior glass windows and doors				**X Annually March**
ELEVATORS					
1	Keep at least one elevator operating for passengers.	**X**			
2	Use freight elevator for all cleaning functions.	**X**			
3	Clean all thresholds, hatches, doors, doorframes, railings, cab walls, panels and directional lights on interior of elevator.	**X**			
4	Clean exterior control panels and lights.	**X**			
5	Clean all stainless steel with manufacturer approved stainless steel cleaner.	**X**			
6	Clean light fixtures.			**X**	
RESTROOMS					
1	Wipe down and refill dispensers with products approved for type of metal or plastic.	**X**			
2	Check operation of all dispensers and notify Owner staff of any problems.	**X**			
3	Clean, polish and disinfect mirrors.	**X**			
4	Sinks and countertops shall be cleaned, polished and disinfected -- use manufacturers specs and products to clean specialty sinks/countertops.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
5	Commodes and both sides of toilet seats shall be cleaned and disinfected.	**X**			
6	Urinals shall be cleaned and disinfected – use deodorized screens only.	**X**			
7	Clean and disinfect sanitary bins.	**X**			
8	Polish bright work.	**X**			
9	Clean and mop floors using the best method to maintain a safe and sanitary restroom.	**X**			
10	Wash and clean wastebaskets.	**X**			
11	Clean light fixtures.			**X**	
12	Clean supply and intake air grilles.			**X**	
13	Spot clean restroom partitions.	**X**			
14	Polish stainless steel and bright work.		**X**		
15	Clean doors, stall hinges and hardware.	**X**			
16	Flush floor drain with disinfectant.	**X**			
17	Strip and wax floors or clean stone with manufacturers approved products.			**X**	
18	Power scrub all tile flooring and grout lines.				**QTRLY**
19	Provide and routinely refill air fresheners approved by NTTA				**X As Needed**

		DAILY	WEEKLY	MONTHLY	OTHER
LOBBY					
1	Sweep, vacuum, damp mop and spray floors as per manufacturer's specifications.	**X**			
2	Clean glass on exterior and interior doors and other glass dividers.	**X**			
3	Wipe down metal surfaces:				
	- at entry doors	**X**			
	- window mullions	**X**			
	- HVAC vents			**X**	
	- thresholds & kick plates	**X**			
	- handrails	**X**			
4	Dust wall surfaces with approved industry cloth	**X**			
5	Remove smudges and marks from walls with non-damaging cleaner.	**X**			
6	High dust and clean electrical fixtures.	**X**			
7	Vacuum walk-off mats and clean floor beneath them.	**X**			
8	Clean directory boards.	**X**			
9	Remove gum and other foreign matter.	**X**			
10	Dust and polish lobby furniture.	**X**			
11	Power scrub all tile flooring and grout lines.				**QTRLY**
GALLEYS / KITCHENETTES					
1	Clean tables and chairs.	**X**			
2	Clean countertops, stovetop and sinks.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
3	Clean and restock paper products.	**X**			
4	Clean exterior and top of refrigerator.	**X**			
5	Clean interior and exterior of microwave.	**X**			
6	Clean countertop condiment, tea and coffee stands.	**X**			
7	Wipe off vending machines.	**X**			
8	Clean and wash trash/recycling containers.		**X**		
9	Clean cabinet fronts and drawers.		**X**		
10	Empty fresh food and freezer sections of refrigerators of all contents. Clean and wipe out interior of both sections.		**X**		
11	Clean interior of conventional range ovens.			**X**	
CONFERENCE ROOMS					
1	Clean and dust tables and credenzas with appropriate and/or manufacturers recommended cleaners.	**X**			
2	Clean white boards.		**X**		
3	Dust light fixtures.		**X**		
OFFICE AND CUBICLES					
1	Empty trash and recycling containers as per Owner procedures and replace plastic liners.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
2	Hand dust desktops with treated cloths per manufactures specs all furniture, fixtures, computer monitors, exposed desk and cabinet areas. Contractor is not to move any items on associates' desks, work areas, tables or cabinets. Chairs are to be put back under the desk or cubicle work area.	**X**			
3	Vacuum all carpeted areas including under desk.	**X**			
4	Dust horizontal surfaces.	**X**			
5	Dust windowsills or other shelf areas.	**X**			
6	Clean interior windows. If frosted, use cleaner specially formulated for frosted glass.				**X Annually March**
7	Turn off lights when area is finished cleaning.	**X**			
8	Damp clean trash receptacles.		**X**		
9	Clean and sanitize telephones.		**X**		
10	Spot clean carpets.	**X**			
11	Dust and wipe accessible vinyl cove base.		**X**		
12	Wipe picture frames, chair and table legs.		**X**		
13	Dust blinds.		**X**		
14	Vacuum or brush upholstered furniture.			**X**	
15	Remove fingerprints, smudges and other marks from light switches and door frames.	**X**			
17	Dust and clean all light fixtures.		**X**		
18	Dust vents.		**X**		
19	Damp wipe HVAC vents.			**X**	

		DAILY	WEEKLY	MONTHLY	OTHER
20	Damp wipe window blinds.			**X**	
ARTWORK					
1	Feather dust only. Do not use any chemicals or others equipment or products.		**X**		
DRINKING FOUNTAINS					
1	Clean and sanitize.	**X**			
2	Polish stainless steel.		**X**		
3	Pour cleaner in drain.			**X**	
LIGHT FIXTURES					
1	Clean and damp wipe all building lights fixtures.				**X Annually February**
STAIRWELLS					
1	Vacuum carpeted stairwells.	**X**			
2	Damp mop tile or concrete stairwells.	**X**			
3	Machine scrub or buff stairs and landings.		**X**		
4	Spot clean carpeted, tiled or concrete stairwells.	**X**			
5	Dust railings and risers.	**X**			
6	Damp wipe railings and risers.		**X**		
7	Clean fingerprints and smudges on walls.	**X**			
8	Dust signage, standpipes and other items.		**X**		

		DAILY	WEEKLY	MONTHLY	OTHER
AIR INTAKE AND SUPPLY GRILLS					
1	Clean grills with appropriate cleaner to remove build up and prevent damaging the finish.				**X Semi-Annually April/ October**

Exhibit B

Compensation

[To be inserted when finalized.]

Exhibit C

Insurance

Contract No.: **06283-GEC-00-GS-MA**

Project: **Janitorial Services for Gleneagles Facilities**

Contractor shall not commence performing under the Agreement until it has furnished NTTA satisfactory proof that Contractor has obtained insurance as described below. Contractor shall submit certificates evidencing the policy coverages and stipulations on forms adopted by the Association for Cooperative Research and Development (ACORD) or other forms acceptable to NTTA. All deductible and retention amounts shall be disclosed on the insurance certificate. Contractor shall provide complete policies or specific coverage forms or endorsements upon request by NTTA.

Contractor shall purchase insurance to cover the obligations and liabilities of Contractor and its agents, employees, and subcontractors that may arise from the Deliverables or Contractor's performance under the Agreement, including without limitation the coverages required below. Contractor shall maintain the required policies in effect until completion of the Term and the expiration of all applicable Texas statutes of limitations or repose. All such insurance shall be provided by companies acceptable to NTTA having an A.M. Best Financial Strength Rating of **A-**. Except for professional liability, cyber risk, crime, and intellectual property insurance (each, as applicable), occurrence-based policies are required.

Required Coverage for all Contracts:

(1) **Workers' Compensation Insurance with statutory limits** in compliance with the laws of the State of Texas (and any other jurisdiction in which work is performed) and **Employer's Liability Insurance** insuring against liability for death, bodily injury, illness, or disease for all employees of Contractor working on the Deliverables, with minimum limits of:

$500,000	Each Accident
$500,000	Disease Policy Limit
$500,000	Disease Each Employee

(2) **Commercial General Liability (CGL) Insurance** insuring against the legal liability of the insureds for accidental death, bodily injury or illness, property damage, personal injury, and advertising injury, which shall include the following specific coverages:

No contractual liability exclusion for liability the insured would have in the absence of this Agreement or for liability assumed in the indemnity provisions of this Agreement;

Premises/operations;

Independent contractors; and

Products and completed operations.

The CGL policy shall have the following minimum limits per occurrence and in the aggregate annually for ongoing work and completed operations:

$500,000	Bodily Injury and Property Damage
$500,000	Products and Completed Operations Aggregate
$500,000	Personal and Advertising Injury
$50,000	Fire Damage

(3) __X___**Business Auto Liability Insurance** with minimum limits of **$500,000** Combined Single Limit for Bodily Injury and/or Property Damage, including Owned, Hired, and Non-Ownership Liability Coverage. This policy shall not contain any limitation with respect to a radius of operation for any vehicle covered, and shall not exclude from the coverage of the policy any vehicle to be used in connection with performance of services under the Agreement.

(4) _____**Umbrella or Excess Liability** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, as applicable, above the required Employer's Liability, CGL, and Business Auto Liability policies. Coverage shall "follow form" with the underlying policies and continue in force as an underlying insurance in the event of exhaustion of underlying aggregate policy limits.

Additional Required Coverage for Certain Agreements:

In addition to the above coverages, Contractor shall purchase and maintain, in Contractor's own name, the coverages indicated by an "X" below:

(5) _____**Pollution Liability Insurance** with minimum limits of **$2,000,000** per occurrence and in the aggregate annually for claims of bodily injury (including sickness, disease, or death of any person), property damage, or environmental damage, arising from or attributed to the discharge, dispersal, release, or escape of any irritant or contaminant into or upon land, any structure, storage tank, the atmosphere, watercourse, or body of water (including groundwater), whether sudden or gradual, at, on, or emanating from locations associated with the Deliverables (including in the course of transport or delivery) and caused, in whole or in part, by actions or omissions of Contractor or its agents or employees. Coverage shall include on- and off-site cleanup, emergency-response, and remediation costs; damages for loss of use of damaged or destroyed property; and defense costs. The policy shall encompass claims by administrative agencies, governmental entities, and private parties. If this coverage is provided on a "claims made" basis, (i) the retroactive date shall be no later than the effective date of this Agreement, and (ii) coverage shall be maintained for two years after the termination of this Agreement.

(6) _____**Elevator Liability Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually providing coverage for bodily injury or property damage resulting from ownership, maintenance, or use of elevators, escalators, lifts, or hoists.

(7) _____**Garage Liability Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, covering garage operations covered autos, garage operations other than covered autos, and non-owned vehicles in the insured's care, custody, or control.

(8) _____**Garagekeeper Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, covering garage operations covered autos, garage operations other than covered autos, and non-owned vehicles in the insured's care, custody, or control.

(9) _____**Errors and Omissions Liability Insurance** insuring against the legal liability of the insureds arising out of any act, error, or omission in the performance of services under the Agreement in the amounts normally carried for its own protection in the practice of providing such services, but in no event less than **$1,000,000** per claim. Any errors and omissions liability policy written on a claims-made basis shall include coverage for an extended reporting period of not less than three years from the termination of the coverage period under the policy or Contractor shall maintain such coverage for a period of three years after the completion of the Term.

(10) _____**Security Guard Dishonesty or Business Services Bond** to compensate NTTA for money or securities lost through the dishonest acts of Contractor or its employee(s), including the dishonest taking of funds or property or other intentional dishonest acts that cause financial loss, with a minimum bond amount of **$100,000**.

(11) _____**Crime Coverage** to compensate NTTA for money, securities, or other property lost through the dishonest or fraudulent acts of Contractor or its employee(s), with minimum limits as follows for each required coverage indicated by an "X" below:

_____ Employee Theft - $1,000,000

_____ Forgery or Alteration - $1,000,000

_____ Premises Coverage - $1,000,000

_____ Outside-the-Premises Coverage - $1,000,000

_____ Transit Coverage - $1,000,000

_____ Computer/Funds Transfer Fraud - $1,000,000

_____ Money Orders/Counterfeit Currency - $1,000,000

_____ Client coverage or Client Property Coverage - $1,000,000

_____ Credit Card Fraud - $1,000,000

(12) _____**Cyber Risk Insurance** appropriate to Contractor's performance under the Agreement, with limits not less than **$5,000,000** per claim and in the aggregate annually.

(a) Coverage shall be sufficiently broad to respond to the duties and obligations undertaken by Contractor in this Agreement and shall include, but not be limited to, claims involving invasion of privacy violations, information theft, damage to, alteration of, or destruction of electronic information, unauthorized release or disclosure of private information, extortion, technology errors and omissions, network security, and media liability.

(b) The policy shall provide coverage for breach-response costs; regulatory fines and penalties; and credit-monitoring expenses with limits sufficient to respond to these obligations.

(c) The policy shall provide property-damage liability coverage for damage to, alteration of, loss of, or destruction of NTTA's electronic data and/or information in the care, custody, or control of Contractor.

(13) _____**Intellectual Property Insurance** with minimum limits of **$5,000,000** per claim and in the aggregate annually, including coverage for claims involving infringement of intellectual property, copyright, trademark, or trade dress.

If Contractor maintains broader coverage and/or higher limits than the minimums shown above, NTTA requires and shall be entitled to the broader coverage and/or higher limits maintained by Contractor. Any available insurance proceeds in excess of the specified minimum limits of insurance and coverage shall be available to NTTA.

Each of the required policies listed above shall include a waiver of subrogation in favor of NTTA.

Each of the required policies (2) through (5) and (13) listed above shall include NTTA as an additional insured in connection with ongoing and completed operations.

The coverage in each of the required policies (2) through (8), (10) and (12) listed above shall be primary and non-contributory.

Additional Requirements:

Insurance for any subcontractor hired to perform services under the Agreement is the responsibility of Contractor and may be addressed by one of the following options:

(a) Option 1: Contractor shall require each subcontractor to secure and maintain, until the expiration of the applicable Texas statute of limitations or repose, types and amounts of insurance coverages appropriate for the work to be performed by the subcontractor, which coverages shall be subject to approval by NTTA, and provide Contractor, prior to performing any services, Certificates of Insurance evidencing compliance with the above requirement, which Contractor shall provide to NTTA upon request; or

(b) Option 2: Contractor shall take responsibility for the subcontractors' insurance coverage by including each subcontractor as an additional insured under Contractor's insurance coverages.

Cancellation Addendum. Contractor shall request that each insurance carrier issuing policies required under the Agreement provide the following statement by endorsement or otherwise:

"This policy shall not be canceled, materially changed, or non-renewed during the period of coverage without at least thirty (30) days' prior written notice to the North Texas Tollway Authority, 5900 West Plano Parkway, Suite 100, Plano, Texas 75093, Attention: Insurance Program Administrator."

To the extent Contractor is unable to obtain such a statement from an insurer or its agent, Contractor shall provide NTTA prompt written notice of any such cancellation, material change, or non-renewal not more than three (3) business days after the date on which Contractor first becomes aware of such event.

Continuation of Coverage. If, for any reason, the required insurance coverage is not kept in force during the Term, Contractor shall stop all work until it secures the required coverage and provides acceptable documentation of coverage to NTTA. Contractor shall notify NTTA, in writing, by certified mail or hand delivery of any material change in the insurance coverage of Contractor or any subcontractor within ten (10) days of such change.

Payment of Deductibles. Contractor shall be responsible for paying any deductible, self-insured retention, premium, co-insurance, or other payment required by any policy required under this Agreement, included in the event a claim is asserted against NTTA or another additional insured. If any part of any coverage includes self-insurance, a captive insurance company, or a fronting arrangement, the amount so covered must be disclosed on the certificate or in a separate letter from Contractor and shall be the sole responsibility of Contractor. NTTA reserves the right to disapprove this coverage and require alternative coverage consistent with the terms of this Exhibit.

Severability of Interests. All insurance required under this Agreement shall include a Severability of Interests clause that substantially states: Each of the insureds covered by the policy shall have the same protection as if the policy had been issued individually to any insured or named insured.

Certification of Annual Aggregates. For all policies, Contractor shall obtain from the insurer certification that the aggregate amount shown on insurance limits is in full force and has not been diminished as of the commencement of the Term and annually thereafter until the Agreement is fully performed.

No Special Payments. No special payments shall be made for any insurance that Contractor may be required to carry, but all costs thereof shall be included in the price bid for the various items included in the proposal. Bidders shall determine all the kinds and costs of insurance that may be required before submitting their bids and shall submit acceptable evidence of same to NTTA upon request.

No Waiver by NTTA. Neither the approval by NTTA of any insurance supplied by Contractor nor the failure to disapprove that insurance shall relieve Contractor from full responsibility for any liability as set forth herein.

Waiver by Contractor. Contractor hereby waives any and every claim that arises or may arise in its favor against NTTA and its owners, directors, officers, employees, contractors, and agents pursuant to the Agreement that is covered, in whole or in part, by insurance provided or to be provided pursuant to the terms hereof. Such waiver shall be in addition to, and not limitation of, any other waiver or release contained in the Agreement. Inasmuch as such waiver shall preclude the assignment of any aforesaid claim by way of subrogation or otherwise to an insurance company (or any other person), Contractor hereby agrees immediately to give to each insurance company which has issued policies of insurance pursuant hereto written notice of the terms of such waiver and to cause such insurance policies to be properly endorsed, if necessary, to prevent the invalidation of such insurance coverages by reason of such waiver.

Special Risks or Circumstances. NTTA reserves the right to modify these requirements, including limits, based on the nature of the risk, prior experience, insurer, coverage, or other special circumstances.

Exhibit D

Subcontractor Plan Form

Contract No: 06283-GEC-00-GS-MA
Project: Janitorial Services for Gleneagles Facilities

The following goal is established for DBE, MBE, and WBE subcontractor participation:

Total D/M/WBE Goal **20% of total contract amount**

DBE = Disadvantaged Business Enterprise
MBE = Minority Business Enterprise
WBE = Women-Owned Business Enterprise

The purpose of the Business Diversity Department (BDD) is to strengthen the North Texas Tollway Authority (NTTA) through the inclusion of Disadvantaged, Minority-, and Women-Owned Enterprises (D/M/WBEs) in the procurement of goods and services. The four major focus areas of the BDD include:

- Expanding outreach efforts and marketing initiatives
- Aligning policies and procedures with the current business environment and industry best practices
- Streamlining compliance and reporting processes
- Building capacity of qualified D/M/WBEs

Please see Section Four the of Business Diversity Program for the link to the Business Diversity Forms.

Exhibit E

Information Security Addendum

Whereas, North Texas Tollway Authority ("NTTA") and Contractor have entered into the agreement to which this addendum is attached, and any associated contract documentation, as such agreement and documentation have been or may be amended ("Commercial Agreement") in connection with which Contractor will provide certain services ("Services") for NTTA or in connection with services provided by NTTA;

Whereas, in the regular course of business, NTTA collects and maintains information about individuals (including toll customers, vehicle owners, and employees) that may include data such as a person's Social Security number, driver's license number, license-plate number, geolocation or travel data, bank account or credit card information, health information, employment-related information, or login and password credentials (all such data pertaining to individuals, whether or not specifically listed, being "Personal Information");

WHEREAS, in connection with the Services, Contractor may have access to, handle, or receive Personal Information or other confidential or proprietary materials, information, or data maintained by or concerning NTTA (collectively with Personal Information, "NTTA Information").

NOW, therefore, for good and valuable consideration, the receipt and sufficiency of which are acknowledged by Contractor, Contractor agrees as follows:

1. Contractor is responsible for the security of NTTA Information that it receives or accesses in performing Services, and Contractor shall at all times maintain appropriate information-security measures with respect to NTTA Information in a manner consistent with applicable law.

2. Contractor must implement and maintain current and appropriate administrative, technical, and physical safeguards with respect to NTTA Information in its possession, custody, or control, or to which it has access, to protect against unauthorized access or use of such NTTA Information. At a minimum, such safeguards shall be consistent with generally-recognized best practices for information security in the handling of similar types of data. Without limiting the foregoing, Contractor must appropriately and effectively encrypt NTTA Information (i) transmitted over the Internet, other public networks, or wireless networks, and (ii) stored on laptops, tablets, or any other removable or portable media or devices.

3. Contractor must identify to NTTA all subcontractors, consultants, and other persons who may have access to NTTA Information in connection with the Services. Before Contractor permits any subcontractor, consultant, or other person not directly employed by Contractor to have access to NTTA Information, Contractor must obtain NTTA's written approval, not to be unreasonably withheld (each approved party being an "approved subcontractor"). Contractor must restrict the NTTA Information to which a given employee or approved subcontractor has access to only that NTTA Information which such employee or approved subcontractor needs to access in the course of such employee's or approved subcontractor's duties and responsibilities in connection with the Services.

4. Before granting access to NTTA Information, Contractor must ensure that its employees and each approved subcontractor agrees to abide by these information security measures (or other applicable measures that are at least as protective of NTTA Information). Contractor shall be responsible for the acts and omissions of its employees, subcontractors, and consultants under this Addendum as though such acts or omissions were those of Contractor.

5. Absent NTTA's advance written permission, NTTA Information must not be stored, accessed, or processed at any location outside of the United States.

6. Contractor may use NTTA Information only for performing the Services, and Contractor must

ensure that its employees and approved subcontractors are restricted from any use of NTTA Information other than for such purpose.

7. Except to the extent otherwise expressly permitted under the Commercial Agreement, Contractor may not disclose NTTA Information except as required by law or a governmental authority having jurisdiction over Contractor. In the event of such required disclosure, Contractor must notify NTTA in advance (if legally permissible to do so) and reasonably cooperate with any decision by NTTA to seek to condition, minimize the extent of, or oppose such disclosure.

8. Contractor will immediately notify NTTA if Contractor discovers any actual or reasonably suspected breach of security or unauthorized use of NTTA Information (i) in the possession, custody, or control of Contractor, its employees, or its subcontractors and/or (ii) effectuated using access permissions or credentials extended to an employee or subcontractor of Contractor (said (i) and (ii), a "Security Incident"). In no event shall Contractor's notification to NTTA be later than three (3) calendar days after Contractor discovers the Security Incident; provided, however, that more immediate notification shall be given as the circumstances warrant or if more immediate notification is required by law. Contractor must provide all necessary and reasonable cooperation with respect to the investigation of such Security Incident, including the exchange of pertinent details (such as log files). In addition, Contractor must promptly undertake appropriate remediation measures and inform NTTA regarding the same.

9. Subject to requirements of data security or privacy laws, NTTA, in its sole discretion, will determine how, whether, and when to provide notice of a Security Incident to (a) any individuals whose personal information has been actually or potentially compromised; (b) any governmental authority; and/or (c) any other entity, including, but not limited to, consumer credit reporting agencies or the media. All notices must be approved by NTTA before they are distributed. Contractor must reimburse NTTA for costs or expenses NTTA incurs in connection with such notices (including the provision of credit monitoring or other identity protection services, to the extent the provision of such services is legally required or customary for similar data security incidents). Furthermore, Contractor shall indemnify and hold NTTA harmless from all claims, costs, expenses, and damages (including reasonable attorneys' fees) that NTTA incurs in connection with any regulatory action or third party claim arising from a Security Incident.

10. Contractor must cooperate and permit NTTA (and any governmental authorities with jurisdiction in connection with an audit requested by NTTA) reasonable access for on-site review of Contractor's data security systems and procedures to verify Contractor's compliance with its obligations under this Addendum.

11. Whenever NTTA Information is no longer needed for the performance of Services, or at any time upon written notification from NTTA, Contractor must unconditionally and without any charge or fee return or, at NTTA's written election, certify the secure destruction of, all NTTA Information in Contractor's possession, custody, or control (including NTTA Information in the possession, custody, or control of any of Contractor's subcontractors).

12. With respect to all NTTA Information that constitutes payment cardholder information under the Payment Card Industry Data Security Standard ("PCI DSS") and with respect to any actions or activity that may impact the security of NTTA's systems securing payment cardholder information, Contractor must, and must cause its approved subcontractors, as applicable, to:

a. abide by PCI DSS, as updated from time to time (currently, version 3.1), and related security and reporting requirements or standards imposed by applicable payment card brand(s) including through the provision of, preparation of, or cooperation in connection with any all reports, assessments, audits, inquiries, or attestations made, to be made, or desired by NTTA pursuant to PCI DSS or applicable payment card brand requirements or standards;

b. annually, and at such other times as NTTA may reasonably request, provide NTTA with a certification demonstrating compliance with PCI DSS in the relevant capacity, without charging NTTA any fee or other amount with respect to such compliance or certification thereof; and

c. without limiting the foregoing, refrain from any recording or storage of card security codes, render primary account numbers unreadable wherever stored, and dispose of payment cardholder information in compliance with PCI DSS Requirement 9.8.

13. If the Commercial Agreement contemplates access to or the handling of any information that constitutes "Protected Health Information" under the Health Insurance Portability and Accountability Act and regulations adopted thereunder ("HIPAA"), the parties must enter into a separate Business Associate Agreement that complies with HIPAA before Contractor will be granted access to any Protected Health Information.

14. This Addendum shall remain in effect as to NTTA Information for so long as NTTA Information remains in the possession, custody, or control of Contractor or its subcontractors.

Exhibit F

Form of Bond

N/A